

SENATE BILL 828

By Hensley

AN ACT to amend Tennessee Code Annotated, Title 68,
relative to blood donations.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 32, Part 1, is amended by
adding the following as a new section:

(a) A person who collects blood donations for the purpose of providing blood for
a blood transfusion shall require a blood donor to disclose if the donor has received a
COVID-19 vaccination.

(b)

(1) If a donor indicates that the donor has received a COVID-19
vaccination, then the person collecting the blood donation must label the blood
bag conspicuously to indicate that the donor has received a COVID-19
vaccination.

(2) This subsection (b) does not authorize the disclosure of the donor's
personal, identifiable information on the blood bag.

(c)

(1) A person in need of a blood transfusion in a nonemergent situation
may request blood based on the blood donor's COVID-19 vaccination status.

(2) If the particular blood requested by the person is available at the
healthcare facility in which the person is receiving care, then the healthcare
professional performing the transfusion shall use the requested blood.

(d) As used in this section, "COVID-19" means the same as in § 14-1-101(5).

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.